

1.

CASE #	CASE NAME	HEARING NAME
CVRI2500269	FREEMAN vs HERN	MOTION TO COMPEL

Tentative Ruling:

The unopposed motion is granted. Defendant Herm is to provide verified responses to the form interrogatories and special interrogatories without objection within 20 days. Sanctions are awarded in the amount of \$510.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2500269	FREEMAN vs HERN	MOTION FOR ORDER TO DEEM MATTERS ADMITTED

Tentative Ruling:

The unopposed motion is granted and Defendant Herm is ordered to provide verified responses to the request for admissions within 20 days. Failure to comply with this order may result in the Court deeming the matters admitted. Sanctions are awarded in the amount of \$510.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2500460	MASON vs ANIL	MOTION FOR LEAVE TO AMEND

Tentative Ruling:

Courts may deny leave to amend when the motion is brought on the eve of trial (*Magpali v. Farmers Group, Inc.* (1996) 48 Cal.App.4th 471, 487-88; *Nelson v. Specialty Records, Inc.* (1970) 11 Cal.App.3d 126, 139-40), “it is an abuse of discretion to deny leave to amend where the opposing party was not misled or prejudiced by the amendment.” (*Kittredge Sports Co.*, 213 Cal.App.3d 1045, 1048; see also *Atkinson v. Elk Corp.* (2003) 109 Cal.App.4th 739, 761.) Prejudice can occur when an amendment “open[s] up an entirely new field of inquiry without any satisfactory explanation as to why this major change in point of attack had not been made long before trial.” (*Magpali*, 48 Cal.App.4th 471, 487) or when allowing amendment would result in a delay of trial, loss of critical evidence, or added preparation expenses. (*Solit v. Tokai Bank* (1999) 68 Cal.App.4th 1435, 1448.) In this case, the request is made after the original trial date and the defendant’s opposition sets for the demonstrated prejudice. As such, leave to amend is denied.